

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
June 26, 2026, 8:30 AM, Department 40**

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NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn. Hearings will automatically be rescheduled by the clerk's office and notices will be sent to petitioners. Petitioners may be required to re-serve and / or re-publish updated or corrected notices as the circumstances of each case may require. For further information, contact the clerk's office at (916) 408-6000.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **June 26, 2026, 8:30 AM, in Department 40**, Commissioner Michael A. Jacques, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are **not** a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated the court day prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0011347 In Re the Estate of Forstall, Richard Eldon

Appearance is required for continued hearing on petition to terminate administration.

Note: nothing has been filed in this matter since April 2025; administrator has alleged the need to continue acting to determine the necessity of additional tax returns; the parties' settlement agreement attached to the petition has not been approved; even if the settlement agreement has been impliedly approved, there is no action, motion, petition, or other proceeding before the court to enforce that agreement; and no order to show cause directed to Brenda Forstall was lodged, filed, or served.

2. S-PR-0012224 In Re the Brice Terry Sewell Liv Trust

Appearance is required for continued status hearing.
Current status is needed.

3. S-PR-0012459 In Re the Estate of Sewell, Brice Terry

Petition to administer estate is again recommended for approval in light of the dismissal of the objections / will contest.
Current status is needed.

4. S-PR-0013069 In Re the Estate of Haddox, Steven Warren

Appearance is required for continued hearing on petition to probate lost will after appointment of administrator on grounds of intestacy.

Notice of hearing as filed, served, and published omits ¶ 4 concerning admission of a will to probate.

Missing service of notice of hearing to Devin Guthrie.

Missing required "written statement of the testamentary words or their substance" of the lost will. Prob.C. § 8223.

Missing required allegations at ¶ 5b (step- or foster child(ren)).

Clarification is needed: ¶ 6f alleges no issue of parents (¶ 6b) or of grandparents (¶ 6d); ¶ 8 alleges decedent was survived by two nephews and a niece. Nieces and nephews are issue of both parents and grandparents.

Petitioner's response to objections of Deana Arnold is needed.

5. S-PR-0013124 In Re the John M. Baudino Trust

Appearance is required for status hearing re 4th SNT account.
Current status is needed.

6. S-PR-0013529 In Re the Estate of Lance, Claire

Appearance of counsel for former executor is required for order to show cause hearing re why counsel should not be required to file an account of the administration of Hertogs as provided in Prob.C. § 10953(b)–(c).

7. S-PR-0013541 In Re the Jean L. Phelps Trust

Appearance is required for hearing on 2d amended petition to approve trustee account.

Missing verifications by Nicholas Priestley and Kelsea Priestley to objections filed March 6. Prob.C. § 1021.

Status of mediation is needed.

8. S-PR-0013868 In Re the W. Earl Johnson Rev Liv Trust

Amended petition to instruction trustee re distributions, expenses, accounting

Appearance is required for continued hearing on petition to instruct trustee re distribution, payment of certain expenses, and to account, as amended.

Trustee account (M Johnson)

Appearance is required for hearing on trustee account (M Johnson).

Missing notice of hearing. Missing service of notice of hearing.

9. S-PR-0013869 In Re the Fam Trust of Don V Prisk & Sherrie N Prisk

Appearance is required for continued hearing on petition to determine trust property, for accounting, to suspend and remove trustee, and for other relief.

Current status is needed.

10. S-PR-0013971 In Re the Estate of Field, Jonathan Wayne

Missing sufficient notice of hearing for amended petition to administer estate. Notice of hearing as filed, served, and published erroneously states that the petition requests the appointment of Christine Field as personal representative. See notice at ¶ 3. In fact, the petition requests the appointment of Heather Geldart as personal representative.

Note: missing signed Duties form (DE-147). The origin of the document filed May 26 is unknown to the court, but it is not mandatory Judicial Council form DE-147. The clerk cannot issue letters until the required Duties form is filed. C.R.C. 7.150.

11. S-PR-0014040 In Re the Davis Family Trust Survivor Trust

Appearance is required for hearing on petition to appoint successor trustee.
Missing waiver(s) of bond referred to in the petition.

12. S-PR-0014041 In Re the Donna Beth Foley 2014 Rev Trust

Petition to determine trust property is recommended for approval as prayed.
Note: trust proceedings to determine trust property were previously filed as action no. S-PR-0011407. It is unclear why petitioner filed this matter as a separate action.

13. S-PR-0014042 In Re the Hardy Fam Trust

Petition to determine trust property is recommended for approval in part, as follows:

The petition prays for a determination that the entirety of the Flick Street property be determined to be a trust asset. See Prayer, ¶ 1.

The petition should be granted as to the 1/100 share of the subject real property with current record title in the name of settlor Susan Hardy. The petition adequately establishes a factual and legal basis for relief under Prob.C. § 850 and *Heggstad*.

The petition should be denied as to the 99/100 share of the subject real property with current record title in the name of petitioner. The petition offers no factual or legal basis to determine that petitioner's 99/100 share is a trust asset. To the contrary, the petition establishes that record title to the 99/100 share was funded to the trust during settlor's lifetime and was distributed from the trust to petitioner in 2020. There is no basis to determine this share of the property is a trust asset.

14. S-PR-0014043 In Re the Estate of Kirchhoff, Susan Lee

Petition to administer estate is recommended for approval as prayed.

15. S-PR-0014044 In Re the Trust of Jay R Selby Trust

Appearance is required for hearing on petition to determine title to property and for other relief.

Missing notice of hearing. Missing service of notice of hearing. Note: it appears no personal representative has been appointed for the estate of Jay R Selby. See June 12, 2026, hearing minutes in action no. S-PR-0014017.

Clarification is needed: petitioner appears individually and as trustee of the Jay W & Lola Mae Selby Family Trust, without explanation. There are no allegations that the Jay W & Lola Mae Selby Family Trust owned or was deprived of any assets described in the petition, and there is no prayer for relief relating to the said trust.

Note: the court does not appear to have subject matter jurisdiction to determine title issues relating to real property in Idaho. Idaho Code § 5-401(1); see also Civ.C. § 755; and *In re Conservatorship of Hume* (2006) 139 Cal.App.4th 393, 404-406 (even where the court may have *in personam* jurisdiction over a fiduciary, it does not have *in rem* jurisdiction over property in another state).

16. S-PR-0014045 In Re the Estate of Appell, Kenneth Conrad

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing.

Missing original will. Prob.C. § 8200(a).

Missing required allegations at ¶ 5a(3)–(4) (RDP).

Note: missing signed Duties form (DE-147). The clerk cannot issue letters until the signed Duties form is filed. C.R.C. 7.150.

17. S-PR-0014047 In Re the Winchell Liv Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

18. S-PR-0014048 In Re the Clarence William Stonebraker & Juanita A Stonebraker 1991 Liv Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

19. S-PR-0014049 In Re the Donald Anthony Nugent & Hildegard Lydia Nugent Rev Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

20. S-PR-0014050 In Re the Estate of Holmes, Mary Aletha

Missing inventory and appraisal of property alleged to be decedent's primary residence. Prob.C. § 13152(a)(2).

21. S-PR-0014051 In Re the Kenneth Selvidge Sr. Trust

Missing notice of hearing for petition to determine existence and terms of trust. Missing service of notice of hearing.

22. S-PR-0014053 In Re the Estate of Baker, LaVaughn F.

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing.

23. S-PR-0014054 In Re the Estate of Littlefield, Patricia A.

Missing required allegations at ¶ 5a(3)–(4) (RDP).

24. S-PR-0014055 In Re the Deborah E. Fiddymment Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

25. S-PR-0014056 In Re the Paul Stephen Kao and Sue Ann Meloy Rev Trust

Missing notice of hearing for petition to terminate bypass subtrust. Missing service of notice of hearing.

26. S-PR-0014057 In Re the Estate of Serrano, Margarita

Petition to administer estate is recommended for approval as prayed.

27. S-PR-0014058 In Re the Carol Victoria Forster Trust

Missing sufficient notice of hearing for petition to determine trust property. Use of mandatory form DE-115 is required for Prob.C. § 850 notice in order to satisfy the content requirements of Prob.C. § 851(c)(1) & (3).

The petition does not include sufficient allegations on which relief may be granted. Petitioner does not allege the current state of record title to either of the subject real properties, or when or how title to either was obtained.

Relief is not available under *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the properties are not identified in the trust or any trust exhibit.

Whether relief is available under *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156 depends, in part, on when title to the subject properties was acquired. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Ukkestad, supra*, 235 Cal.App.4th at 162–163. However, the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property and so does not hold that property acquired contrary to the trust after its execution is or automatically becomes trust property. The allegations of the petition do not establish that sufficient extrinsic evidence existed at the time the trust was executed to establish that the trust was funded with the subject properties.

The pourover will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior to* [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

Because the allegations are insufficient for the court to grant relief, it is recommended the petition be denied.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

28. S-PR-0014239 In Re the Estate of Okamoto, Catherine Susan

Appearance is required for status hearing re special administration.

The court should determine whether notice should be required to heir of decedent and all persons interested in decedent's living trust for a continued status hearing.